

CHAPTER 28.

An Act to amend sections fifty-four, fifty-six, fifty-seven and seventy-one of the Local Government (Ireland) Act, 1898, and to make provision with respect to the making of rates in certain urban districts in Ireland.

[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) Subsection (11) of section fifty-four of the principal Act shall not apply in the case of an occupier who would, but for this enactment, be entitled under that subsection to deduct from his rent a portion of the poor rate, and subsection (3) of section three of the Local Government (Ireland) Act, 1900 (which amends the said subsection (11)), shall be repealed.

Amendment of 61 & 62 Vict. c. 37. s. 54, with respect to deductions from rent in certain cases. 63 & 64 Vict. c. 63.

(2.) This section shall come into operation, as respects any holding, as from the gale day next after the passing of this Act.

2. Where, for the purpose of raising in any area the exact amount of any excluded charges mentioned in sections fifty-six or fifty-seven of the principal Act, it would, but for this section, be necessary to make a rate in the pound less than a farthing or not being a multiple of a farthing, the rate in the pound actually made for that purpose shall be a farthing or the next highest multiple of a farthing, as the case may be, and any sum raised in excess of such exact amount shall—

Amendment of 61 & 62 Vict. c. 37. ss. 56 & 57, as to raising excluded charges.

(a) in the case of any excluded charge mentioned in the said section fifty-six, be carried to the district fund of the district comprising that area or, where the area is comprised in more than one county district, to the district funds in proportion to the rateable value of the part of the area comprised in each district; and

(b) in the case of any excluded charge mentioned in the said section fifty-seven, be applied in such manner as the Local Government Board direct in aid of any rate required to meet any such excluded charge leviable within the aforesaid area.

3. If, within one year after the passing of this Act, the council of a county or of an urban county district apply to the Local Government Board for an order under section seventy-one of the principal Act altering their financial relations, and if no order under the said section affecting those relations has been made since the passing of the said Act, the Board may, if of opinion that those relations have become inequitable by the operation of that Act, make an Order under that section, any limit of time contained therein notwithstanding.

Amendment of 61 & 62 Vict. c. 37. s. 71, with respect to date on which order may be made.

4. In an urban district under the Towns Improvement (Ireland) Act, 1854, or under a local Act incorporating the rating provisions

Provision with respect to making of

rates in
certain urban
districts.
17 & 18 Vict.
c. 103.
1 & 2 Vict.
c. 56.
12 & 13 Vict.
c. 104.

thereof, the provisions of section seventy of the Poor Relief (Ireland) Act, 1838, and section twenty-one of the Poor Relief (Ireland) Act, 1849, with respect to the making of the poor rate, shall apply to the making of any rate under the said Act of 1854 or such local Act, instead of the provisions in that behalf of section sixty-one of the said Act of 1854 and so much of the provisions of section sixty thereof as relate to the fixing of a day on which the rate is to be payable and the publication of notices in respect of such rate.

Short title and
construction.

5. This Act may be cited as the Local Government (Ireland) Act, 1901, and shall be construed with the Local Government (Ireland) Act, 1898 (in this Act referred to as "the principal Act"), and may be cited with the Local Government (Ireland) Acts, 1898 and 1900, as the Local Government (Ireland) Acts, 1898 to 1901.

CHAPTER 29.

An Act to confirm certain Acts of Colonial Legislatures.

[17th August 1901.]

WHEREAS it is expedient to confirm certain Colonial Acts the validity of which is open to doubt by reason of their not having been reserved for the signification of Her late Majesty's pleasure:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Confirmation
of certain
Acts of
Colonial
Legislatures.

1. Each of the Acts mentioned in the schedule to this Act shall be deemed to be and to have been, as from the date of the assent thereto of the Governor of the Colony by whose Legislature it was passed, as valid as if it had been reserved for the signification of Her late Majesty's pleasure and Her late Majesty's assent to the Act had been duly given and signified in the colony at the date aforesaid.

Short title.

2. This Act may be cited as the Colonial Acts Confirmation Act, 1901.

SCHEDULE.

ACTS CONFIRMED.

Acts of the Colony of New South Wales.

The Federal Elections Act, 1900 (No. 73 of 1900).

The Parliamentary Electorates Redistribution Act, 1900 (No. 84 of 1900).